SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Criminal Appeal No. 1277 of 2014 (YEAR: 2014)

CORAM: CHANDRAMAULI KR. PRASAD, PINAKI CHANDRA GHOSE

Arnesh Kumar
... Appellant(s) / Petitioner(s)
Versus
State of Bihar
... Respondent(s)

Acts Referred:	Code of Criminal Procedure, 1973, Indian Penal Code, 1860
Sections:	Section 41 CrPC, Section 41A CrPC, Section 498A IPC

JUDICIAL HEADNOTE & SUMMARY

Formulated mandatory directives prohibiting automatic arrests for offences punishable with imprisonment of seven years or less without recording specific reasons under Section 41 CrPC.

RATIO DECIDENDI

The Court held that: Formulated mandatory directives prohibiting automatic arrests for offences punishable with imprisonment of seven years or less without recording specific reasons under Section 41 CrPC. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Arnesh Kumar v. State of Bihar (Criminal Appeal No. 1277 of 2014) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Code of Criminal Procedure, 1973, Indian Penal Code, 1860, particularly Section 41 CrPC, Section 41A CrPC, Section 498A IPC. Formulated mandatory directives prohibiting automatic arrests for offences punishable with imprisonment of seven years or less without recording specific reasons under Section 41 CrPC.

OPERATIVE ORDER

ORDER: Decided